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Case Number: 23STCV25886 Hearing Date: July 6, 2026 Dept: 11

Final Approval of Class Action Settlement

Department SSC-11

Basilia Villa Magana v. CJKANTRG PA, LLC

Case

No.: 23STCV25886

Hearing: July 6, 2026

TENTATIVE RULING

The Court GRANTS final approval and awards/approves
as follows:

(1) \$109,989

for attorney fees to Class Counsel, Blackstone Law, APC; (2) \$17,967.61 for attorney costs to Class Counsel; (3) enhancement award of \$5,000 to the class representative,
Basilia

Villa Magana; (4) \$22,500 (75% of \$30,000 PAGA penalty) to the LWDA;
and (5) \$4,750 for settlement administration costs to Apex Class Action,
LLC.

Class Counsel is ordered to lodge a proposed Order
consistent with this ruling and a separate judgment containing the class
definition, release language, and a statement that no class members opted out
of the settlement by _____, 2026.

BACKGROUND

Plaintiff

Basilia

Villa Magana sues her former employer, Defendant CJKANTRG PA, LLC, for alleged wage and hour violations. Defendant is a staffing agency providing staff for produce processing plants, among other types of businesses. Plaintiff seeks to represent a class of Defendant's current and former non-exempt employees.

On September 14, 2023, Plaintiff

provided written notice to the LWDA, pursuant to California Labor Code Section 2699.3, of the specified provisions of the California Labor Code alleged to have been violated by Defendant.

On

October 23, 2023, Plaintiff filed a Class Action Complaint against Defendant alleging causes of action for violations of the California Labor Code for: (1) failure to pay minimum wages, (2) failure to pay overtime wages, (3) failure to provide compliant meal periods and premium payments in lieu thereof, (4) failure to provide compliant rest periods and premiums payments in lieu thereof, (5) failure to timely pay wages during employment, (6) failure to provide accurate wage statements, (7) failure to timely pay wages upon termination, (8) failure to reimburse necessary business expenses, and (9) for violations of California Business & Professions Code Section 17200, et seq. based on the aforementioned California Labor Code violations.

On

November 20, 2023, Plaintiff filed a Complaint for Enforcement Action Under the Private Attorneys General Act, Cal. Labor Code §§ 2698 et seq. ("PAGA Complaint") in the action entitled Basilia Villa Magana v. CJKANTRG PA, LLC, Case No. 23STCV28370, against Defendant ("PAGA Action"). The PAGA Complaint alleges a single cause of action for civil penalties under the Private Attorneys General Act of 2004 pursuant to California Labor Code Section 2698 et seq. ("PAGA") based on the aforementioned California Labor Code violations.

On

October 3, 2024, the Parties participated in a formal mediation conducted by Jonathan D. Andrews, Esq., which ultimately resulted in settlement. The terms

of settlement were finalized in the long-form Joint Stipulation of Class Action and PAGA Settlement ("Settlement Agreement"), a copy of which was filed with the Court on June 5, 2025.

On December 10, 2025, after the parties filed further briefing and an Amended Settlement Agreement to address concerns raised by the Court, preliminary approval of the settlement was granted. All references below are to the agreement attached to the Supplemental Declaration of Annabel Blanchard ISO Prelim.

Notice was given to the Class Members as ordered. (See Declaration of Katie Tran ("Tran Decl.")) Now before the Court is the Motion for Final Approval of the Settlement.

SETTLEMENT CLASS DEFINITION

"Class"

or "Class Member(s)" means all non-exempt, hourly-paid individuals that worked for Defendant at the Del Monte Fresh Produce facility located at 10730 Patterson Place, Santa Fe Springs, California, during the Class Period. (¶9.b)

"Class

Period" means the period from October 23, 2019, through December 2, 2024 (i.e., 60 days following mediation). (¶9.f)

"PAGA

Employees" means all non-exempt, hourly-paid individuals that worked for Defendant at the Del Monte Fresh Produce facility located at 10730 Patterson Place, Santa Fe Springs, California, during the PAGA Period. (¶9.x)

"PAGA

Period" means the period from September 14, 2022 (i.e., one year prior to the submission of pre-filing PAGA notice letter) through December 2, 2024 (i.e., 60 days following mediation). (¶9.z)

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"Settlement

Class” or “Settlement Class Member(s)” means all Class Members who do not submit a timely and valid Request for Exclusion. (¶9.ii)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

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The Gross

Settlement Amount (“GSA”) is \$330,000, non-reversionary. (¶9.p)

o Escalator Clause: Defendant has represented that the Class Members worked a total of 3,731 Workweeks during the Class Period. If it is determined by the Settlement Administrator that the total number of Workweeks worked by the Class Members during the Class Period actually exceeds 3,731 by more than 10%, then the Gross Settlement Amount will be increased on a pro rata basis equal to the percentage increase in the number of Workweeks worked by the Class Members above the 10% buffer. For example, if the number of Workweeks increases by 11%, then the Gross Settlement Amount will increase by 1%. Defendant will have the discretion to end the Class Period when Workweeks hit the 10% threshold (i.e., 4,104 workweeks). If Defendant opts to increase the Gross Settlement Amount, the Parties agree that the portion of the Gross Settlement Amount allocated to attorneys’ fees will increase proportionally such that the total amount of attorneys’ fees remains thirty-five percent after the upward adjustment required by the provision is implemented. (¶16)

o At final approval, the settlement administrator represents that the total number of workweeks worked by Participating Class Members during the Class Period is 3,034. (Tran Decl., ¶16.) Accordingly, the escalator provision was not triggered.

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The

Net Settlement Amount (“Net”) estimated at preliminary approval (\$155,261) is the GSA minus the following:

Up

to \$109,989 (33.33%) for

attorneys' fees (§12);

Up

to \$25,000 for attorneys'
costs (Ibid.);

Up

to \$5,000 for an Enhancement
Payment to the class representative (§13);

Up

to \$4,750 for costs of
settlement administration (§15); and

o Payment of \$30,000 PAGA penalty
(75% or \$22,500 to the LWDA) (§14)

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The

employer's share of taxes and contributions in connection with the wages
portion of Individual Settlement Shares shall be paid by Defendant in addition
to the Gross Settlement Amount. (§9.k)

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There

is no claim form requirement. (Notice, pg. 1)

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Individual Settlement Payment Calculation: After Final Approval, the Settlement
Administrator will divide the final Net Settlement Amount by the Workweeks of
all Settlement Class Members to yield the "Final Workweek Value," and multiply
each Settlement Class Member's individual Workweeks by the Final Workweek Value
to each Settlement Class Member's final Individual Settlement Share. (§17.b)

o PAGA Payments: The Settlement Administrator
will divide the PAGA Employee Amount, i.e., 25% of the PAGA Amount, by the Pay
Periods of all PAGA Employees to yield the "Pay Period Value," and multiply
each PAGA Employee's individual Pay Periods by the Pay Period Value to yield
each PAGA Employee's Individual PAGA Payment. (§18)

o Tax Allocation: Each Individual Settlement

Share will be allocated as follows: ten percent (10%) wages and ninety percent (90%) penalties, interest, and non-wage damages. Each Individual PAGA Payment will be allocated as one hundred percent (100%) penalties. (¶19)

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Response Deadline: "Response Deadline" means the deadline by which Class Members must submit a Request for Exclusion, Notice of Objection, and/or Workweeks Dispute, which shall be the date that is forty-five (45) calendar days from the initial mailing of the Class Notice by the Settlement Administrator to Class Members, unless the 45th day falls on a Sunday or Federal holiday, in which case the Response Deadline will be extended to the next day on which the United States Postal service is open. The Response Deadline may also be extended by express agreement between Class Counsel and Defendant's Counsel. In the event that a Class Notice is re-mailed to a Class Member, the Response Deadline for that Class Member shall be extended fifteen (15) calendar days from the original Response Deadline. (¶19.ii)

o If more than ten percent (10%) of the Class

Members submit timely and valid Requests for Exclusion, Defendant may elect to rescind the Settlement Agreement. (¶32)

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Funding

of the Settlement: No later than twenty-one (21) business days after the Effective Date, Defendant will deposit the Gross Settlement Amount into a Qualified Settlement Fund ("QSF") within the meaning of Treasury Regulation Section 1.468B-1, et seq., to be established by the Settlement Administrator. Defendant shall provide all information necessary for the Settlement Administrator to calculate necessary payroll taxes including its official name, 8-digit state unemployment insurance tax ID number, and other information requested by the Settlement Administrator, no later than five (5) business days after the Effective Date. (¶35)

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Distribution:

Within five (5) business days of the funding of the Gross Settlement Amount, the Settlement Administrator will issue the Individual Settlement Payments to Settlement Class Members, Individual PAGA Payments to PAGA Employees, LWDA Payment to the LWDA, Enhancement Payment to Plaintiff, Attorneys' Fees and

Costs to Class Counsel, and Settlement Administration Costs to itself. The Settlement Administrator shall also set aside the Employer Taxes and all employee-side payroll taxes, contributions, and withholding, and timely forward these to the appropriate government authorities. (§136)

Uncashed Settlement Checks: Each Individual Settlement Payment and Individual PAGA Payment check will be valid and negotiable for one hundred and eighty (180) calendar days from the date the checks are issued, and thereafter, shall be canceled. Any funds associated with such canceled checks shall be distributed by the Settlement Administrator to the State of California's Unclaimed Property Fund in the name of the Settlement Class Member and/or PAGA Employee. (§137)

The settlement administrator will be Apex Class Action LLC. (§19.jj)

The proposed Settlement Agreement was submitted to the LWDA on May 30, 2025. (Declaration of Annabel Blanchard ISO Prelim, Exhibit 4.)

Class Settlement Release.

Upon the full funding of the Gross Settlement Amount, Plaintiff and all Settlement Class Members will be deemed to have fully, finally, and forever released, settled, compromised, relinquished, and discharged the Released Parties of all Released Class Claims. (§138)

o "Released

Class Claims" means any and all claims, damages, debts, liabilities, demands, obligations, penalties, actions or causes of action of any time, arising under state, federal, or local law, whether statutory, common law, or administrative law, at any time during the Class Period, that were alleged, or reasonably could have been alleged, based on the facts stated in the operative complaints in the Action and ascertained in the course of the Action, including but not limited to (1) failure to pay minimum wages, (2) failure to pay overtime wages, (3) failure to provide compliant meal periods and premium payments in lieu thereof, (4) failure to provide compliant rest periods and premiums payments in

lieu thereof, (5) failure to timely pay wages during employment, (6) failure to provide accurate wage statements, (7) failure to timely pay wages upon termination, (8) failure to reimburse necessary business expenses, and (9) for violations of California Business & Professions Code Section 17200, et seq. (¶9.ee)

o PAGA

Settlement Release: Upon the full funding of the Gross Settlement Amount, Plaintiff, the State of California with respect to all PAGA Employees, and all PAGA Employees will be deemed to have fully, finally, and forever released, settled, compromised, relinquished, and discharged the Released Parties of all Released PAGA Claims. (¶39)

§ “Released

PAGA Claims” means all claims for PAGA civil penalties, interest, fees or costs alleged in and/or arising out of the facts alleged in the operative complaints in the Action, and/or Plaintiff’s administrative exhaustion letter submitted other LWDA (i.e., PAGA Letter) arising during the PAGA Settlement Period, including but not limited to penalties that could have been awarded pursuant to Labor Code sections 201, 202, 203, 204, 226(a), 226.7, 510, 512(a), 1174(d), 1194, 1197, 1197.1, 1198, 2800, and 2802, and the applicable Industrial Welfare Commission Wage Orders. Plaintiff will release all claims for Released PAGA Claims. (¶9.ff)

§ All

PAGA Employees will be bound to the PAGA Settlement and will be issued their Individual PAGA Payment, irrespective of whether they submit a Request for Exclusion. (¶29)

o “Released

Parties” means Defendant and its current and former officers, directors, members, insurers, shareholders, subsidiaries, affiliates, predecessors, successors, and assigns. (¶9.gg)

o Plaintiff entered into a separate agreement

regarding the general release of her claims against Defendant and Released Parties. (¶40; see also Supp. Decl. of Annabel Blanchard ISO Prelim, ¶7, Exhibit E thereto.)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does a presumption of fairness exist?

The Court preliminarily found in its Order of December 10, 2025 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion.

Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B.

Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class.

Reaction

of the class members to the proposed settlement.

Number of Class Members: 87 (Tran Decl., ¶15.)

Number of notice packets mailed: 87 (Id. at ¶7.)

Number of undeliverable notices: 10 (Id. at ¶9.)

Number of opt-outs: 0 (Id. at ¶11.)

Number of objections: 0 (Id. at ¶12.)

Number of participating class members: 87 (Id. at ¶14.)

Average individual payment: \$1,784.61 (Id. at ¶17.)

Highest individual payment: \$13,663.38 (Ibid.)

The

Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the

Class Members to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C. Attorney Fees and Costs

Class

Counsel requests an award of \$109,989 in fees and \$17,967.61 in costs. (Memo ISO Final at 20:16-23.) The Settlement Agreement provides for up to \$109,989 (33.33%) for attorney fees and \$25,000 in costs (¶12).

“Courts

recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.” (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using the percentage method, as crosschecked by lodestar. (Memo ISO Final at pp. 13-20.)

In

common fund cases, the Court may employ a percentage of the benefit method, as cross-checked against the lodestar. (Laffitte v. Robert Half Int’l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents one-third of the gross settlement amount, which is the average generally awarded in class actions. (See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 [“Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”].)

Class

Counsel has provided information, summarized below, from which the lodestar may be calculated:

Attorney

Rates

Hours

Totals

Jonathan
M. Genish

\$1,295

17.4

\$22,533.00

Barbara
DuVan-Clarke

\$1,050

74.5

\$78,225.00

Danielle
L. GruppChang

\$825

56.2

\$46,365.00

P.J.
Van Ert

\$750

32.6

\$24,450.00

Annabel
Blanchard

\$750

27.9

\$20,925.00

Totals

208.6

\$192,498.00

(Declaration of Annabel Blanchard ISO Final, ¶128.)

Counsel's

percentage-based fee request is lower than the unadjusted lodestar, and would represent application of a multiplier of approximately 0.57x to reach.

Here,

the \$109,989 fee request represents a reasonable percentage of the total funds paid by Defendant. Notice of the fee request was provided to class members in the notice packet, and no one objected. (Tran Decl., ¶12, Exhibit A.)

As

for costs, Class Counsel is requesting a cost amount of \$17,967.61. This is less than the \$25,000 cap provided for at preliminary approval, which was disclosed to Class Members in the Notice and not objected to. (Tran Decl., ¶12, Exhibit A.) Counsel represents that he incurred actual costs totaling \$11,275.27, which include, but are not limited to: filing fees, service of documents, Case Anywhere, and mediation fees. (Blanchard Decl. ISO Final, ¶30, Exhibit 4.) The costs incurred appear to be reasonable in amount and reasonably necessary to this litigation.

Based on the above, the

recommendation is to award \$109,989 in fees and \$17,967.61 in costs.

D. Incentive Award

The class representative, Basilia Villa Magana, seeks an enhancement payment of \$5,000 for her contributions to the action. (Memo ISO Final at 20:26-28.)

In connection with the final fairness hearing, named Plaintiffs must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they “should be compensated for the expense or risk he has incurred in conferring a benefit on other members of the class.”

(Clark v. American Residential Services LLC (2009) 175

Cal.App.4th 785, 806.) Trial courts

should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’

Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id.

at 806-807, italics and ellipsis in original.)

Plaintiff represents that her contributions to this litigation include: conferring with her attorneys about the case, searching for and providing documents, answering questions, providing information regarding Defendant’s practices, and reviewing the settlement. She estimates spending 35-40 hours on the case. (Declaration of Basilia Villa Magana ISO Final, ¶¶4-9.)

Based on the above, as well as the benefits obtained on behalf of the class, the recommendation is to grant the enhancement payment in the amount of \$5,000 to Plaintiff.

E.

Settlement Administration Costs

The settlement

administrator, Apex Class

Action, is requesting \$4,750 for

the costs of settlement administration. (Tran Decl., ¶20.) This equals the estimated cost of \$4,750 provided for in the settlement agreement (¶15)

and disclosed to class members in the Notice, to which there were no objections. (Tran Decl., ¶12, Exhibit

A.) Based on the above, the recommendation is to award costs in the requested amount of \$4,750.